

		Defendants to give notice. <i>Upcoming CMC & OSC</i> In light of Defendants’ response to the Complaint (i.e., the above-discussed demurrer), the court DISCHARGES the Order to Show Cause set for 8/31/26. As the action is not yet at-issue, the court CONTINUES the Case Management Conference to December 7, 2026, at 10:00 am in Dept. W8. All appearing parties SHALL file and serve a new timely case management statement <u>at least 15 calendar days prior</u> to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369. Plaintiff to give notice.
17	Cannon vs. Crown Point Condos No. 2	<u>Demurrer</u> The court SUSTAINS in part, and OVERRULES in part, Defendants CROWN POINT CONDOS NO. 2, SHERRI CHAPMAN and CHAD BRUNOCHELLI’s demurrer to Plaintiff CINDY CANNON’S First Amended Complaint (“FAC”). Specifically, the court SUSTAINS the demurrer to the first, fourth, eighth, ninth and tenth causes of action, and OVERRULES the demurrer to the fifth cause of action (cancellation of instrument). Plaintiff is granted 15 days leave to amend as to the first and fourth causes of action only. The FAC asserts the following causes of action: 1. Preliminary and permanent injunctions 2. Breach of fiduciary duty 3. Fraudulent concealment 4. Quiet title